sons properly and directly concerned in any renegotiation proceeding, or their duly authorized representatives, may apply in writing to the Chairman of the Renegotiation Division which conducted the proceeding for access to records of such proceeding. Access will be granted at times and places which are convenient in the light of the physical location of the records to which access is sought. Access is subject to the provisions of § 422.-261 (b), and to the requirements of the Department for security of classified material, and access will not be furnished under this section to memoranda and reports prepared by Government employees for use within the agency, or to any other material which in the opinion of the Chairman should be held confidential for good cause shown. A person shall not be deemed properly and directly concerned in any renegotiation record unless it relates to renegotiation of the contracts or subcontracts of such person, or of a partnership or joint venture in which he was a partner or joint venturer during the period renegotiated, or unless the person has some other pecuniary interest in the result of a renegotiation proceeding such that, in the opinion of the Chairman, he would be caused unreasonable hardship by being denied access to records relating therto.

§ 422.263 *Affording access to documents pursuant to subpoena or other judicial process.* Subpoenas duces tecum, or other judicial process constituting a demand for access to or the production of documents in the custody of the Policy and Review Board are properly to be served upon the Chairman of the Policy and Review Board. No person, notwithstanding that he may have physical possession of such documents, is authorized to afford access thereto or to produce the same pursuant to subpoena duces tecum, or other judicial process except upon authorization or direction from the Chairman of the Policy and Review Board. Whenever a subpoena or other process demanding the production of documents which are in the custody of the Policy and Review Board, whether issued by a Federal Court, State Court, or administrative tribunal is served upon any person, other than said Chairman, having possession of such documents, such person will appear in such court and respectfully decline to present such documents, basing his refusal upon this regulation and pointing out that the Policy and Review Board's administrative process makes provision for the serving of such subpoenas upon its Chairman.

§ 422.264 *Disclosure of information acquired in the performance of duties in connection with renegotiation.* Disclosure of facts, knowledge of which was acquired in the course of official duty in connection with any renegotiation proceeding conducted by or under the authority of the Policy and Review Board, is to be made only to such persons or bodies and subject to the same restrictions as are provided in the regulations in this subchapter with respect to access to documents in the custody of the Policy and Review Board.

§ 422.265 *Control of physical possession of documents.* Any person transferred or separated from duty or employment in connection with renegotiation, or transferred or separated from duty or employment in any other connection in which possession of documents in the custody of the Policy and Review Board is authorized, shall, upon such transfer or separation, deliver all such documents in his possession into the possession of a responsible official.

§ 422.266 *Opinions and orders.* Except as authorized in §§ 422.260–422.266, opinions and orders will not be published or made available to the public, pursuant to section 3 (b) of the Administrative Procedure Act, inasmuch as they are regarded as confidential for good cause shown, by reason of the confidential data relating to contractor's business, furnished by contractors, and included therein. For the purposes of this paragraph, the term "opinion" includes a statement furnished pursuant to §§ 425.-520 to 425.525–2 of this chapter, and the term "order" includes an agreement to eliminate excessive profits, as well as a unilateral determination. Opinions and orders are not cited as precedents in any renegotiation proceedings.

Adopted: December 16, 1948.

FRANK L. ROBERTS,
Chairman, Military Renegotiation Policy and Review Board.

Approved: December 24, 1948.

JAMES FORRESTAL,
Secretary of Defense.

[F. R. Doc. 48–11402; Filed, Dec. 28, 1948; 10:15 a. m.]

Chapter VI—Department of the Navy

Subchapter D—Procurement, Property, Patents, and Contracts

INCORPORATION OF RENEGOTIATION ACT OF 1948 IN CONTRACTS FOR PROCUREMENT OF AIRCRAFT AND AIRCRAFT PARTS

CROSS REFERENCE: For directive of the Secretary of Defense with regard to the inclusion of a clause incorporating the Renegotiation Act of 1948 in all contracts for the procurement of aircraft and aircraft parts, see Subtitle A of this title, *supra*.

Chapter VII—Department of the Air Force

INCORPORATION OF RENEGOTIATION ACT OF 1948 IN CONTRACTS FOR PROCUREMENT OF AIRCRAFT AND AIRCRAFT PARTS

CROSS REFERENCE: For directive of the Secretary of Defense with regard to the inclusion of a clause incorporating the Renegotiation Act of 1948 in all contracts for the procurement of aircraft and aircraft parts, see Subtitle A of this title, *supra*.

TITLE 35—PANAMA CANAL

Chapter I—Canal Zone Regulations

Appendix—Canal Zone Orders

[Canal Zone Order 1]

NOTE: Canal Zone Orders 1, 4, 5, and 8, are published herewith in the public interest and to fill gaps in this series which is a continuation of a series of Executive orders on the same subject matter.

AMENDMENT OF EXECUTIVE ORDER NO. 1888 OF FEBRUARY 2, 1914, AS AMENDED, RELATING TO CONDITIONS OF EMPLOYMENT IN SERVICE OF PANAMA CANAL AND PANAMA RAILROAD COMPANY ON ISTHMUS OF PANAMA

By virtue of the authority vested in me by section 81 of title 2 of the Canal Zone Code, as amended, and Executive Order No. 9746 of July 1, 1946, section 6 of Executive Order No. 1888 of February 2, 1914, as amended by Executive Order No. 9467 of August 19, 1944, is amended to read as follows:

6. No employees shall receive compensation at a rate in excess of $125 a month or 72 cents an hour unless they are citizens of the United States or of the Republic of Panama; and such citizens shall be given preference for employment in all grades: *Provided, however* (a) That persons who are not such citizens may be employed in positions for which the rate of compensation is in excess of $125 a month or 72 cents an hour (1) if they occupied the same or similar positions for two years or more during the construction of the Canal, or (2) if such action is deemed necessary by reason of an emergency, in which latter case, however, such persons shall be replaced by citizens of the United States or of the Republic of Panama as early as practicable; and (b) that the Governor is authorized to increase to rates exceeding $125 a month or 72 cents an hour the compensation of such number of employees who are not such citizens as shall at no time exceed 10 percent of the total number of employees who are not such citizens.

ROBERT P. PATTERSON,
Secretary of War.

JULY 1, 1946.

[F. R. Doc. 48–11313; Filed, Dec. 28, 1948; 9:04 a. m.]

[Canal Zone Order 4]

CONDITIONS OF EMPLOYMENT IN SERVICE OF PANAMA CANAL AND PANAMA RAILROAD COMPANY ON ISTHMUS OF PANAMA

By virtue of the authority vested in me under section 81 of title 2 of the Canal Zone Code, as amended, by Executive Order No. 9746 of July 1, 1946, and in connection with the internal management and the personel and property of the Government, it is hereby ordered as follows:

1. The Governor of The Panama Canal, hereinafter referred to as the Governor, is authorized to fix and from time to time to adjust the rental for quarters in accordance with the following general principles: